

		Associates Construction, Inc. v. Hamilton (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (Ibid. [citing Hewlett-Packard Co. v. Oracle Corp. (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].) The Motion is DENIED WITHOUT PREJUDICE. Plaintiffs to give notice.
108	Hillsboro Brown Capital, LLC vs. Taft 19-01087702	1) Motion to Expunge Lis Pendens 2) OSC Re: Entry of Judgment Defendant Jorge Burtin’s (“Burtin”) motion to expunge the lis pendens recorded by plaintiff Hillsboro Brown Capital (“HBC”), in Orange County, California on August 27, 2024 (Instrument No. 2024000221196) which relates to property located in Orange County in the City of Costa Mesa, Assessor’s Parcel Number (APN) 139-652-08 is GRANTED. Pursuant to Code Civ. Proc. §405.30, anyone with an interest in real property may move a court for an order expunging a lis pendens. A court “shall” grant a motion to expunge if either of the following conditions exists: 1. The pleading upon which the lis pendens is based does not contain a real property claim (Code Civ. Proc. §405.31); OR 2. The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. §405.32).

		The party responsible for filing the lis pendens bears the burden of proof. (Amalgamated Bank v. Superior Court (2007) 149 Cal. App. 4th 1003, 1007; Shah v. McMahon (2007) 148 Cal. App. 4th 526, 529.) As a preliminary matter, HBC contends that the motion cited only to CCP §405.31 as grounds for relief. This contention is untrue, as the notice cites to §405.30 and both sections 405.31 and 405.32 are discussed in the memorandum. Neither party disputes that the operative Fourth Amended Complaint contained only one “real property” claim, which was the second cause of action for Breach of Written Contract – Specific Performance. This cause of action sought to enforce HBC’s purported right to acquire 25% of the ownership of property located at 1685 Toronto Way, Costa Mesa, CA. (4AC ¶ 104.) On June 18, 2025, this Court issued its Findings and Conclusions from Phase One of the Trial. (ROA 1598.) Within those Findings, this Court concluded that HBC did not properly exercise the Option for Toronto Way. (Ibid.) Thus, HBC cannot prevail on its second cause of action. In a case where the trial court has already substantively rejected the recording party’s claim (i.e., trial has concluded, but the time for appeal has not lapsed), the standard for expunging lis pendens is: “If the claimant loses at trial, the lis pendens must be expunged unless the trial court is willing to find that the probabilities are that its own decision will be reversed on appeal.” Mix v. Superior Court (2004) 124 Cal.App.4th 987, 996. Here, the Court has already ruled in favor of Defendant on the only “real property” cause of action. HBC has not provided any argument to support a finding that the probable outcome of an appeal from this Court’s ruling would be a reversal. As noted in Mix v. Superior Court, “it is improbable, but not impossible, that a trial court,
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		having decided a case against a claimant, might nevertheless forecast the reversal of its own decision on appeal.” Mix at 995-96 (emphasis added). This case does not fall within that exception. In connection with this motion, Defendant Burtin is awarded a total of \$9,222.95 (11.5 hrs at \$800/hr + \$22.95 costs) in reasonable attorneys’ fees and costs against Plaintiff HBC. (Code Civ. Proc., § 405.38.) This amount is to be paid to Burtin’s counsel within 30 days. Moving party to give notice.
109	Mendez vs. Progressive Insurance Company 25-01512485	1. Motion to Compel Arbitration 2. Joinder to Motion to Compel Arbitration 3. Order to Show Cause re: Dismissal for Failure to Proceed 4. Case Management Conference Defendant, Artisan and Truckers Casualty Company (erroneously sued as Progressive Insurance Company) (“Artisan”) moves for an order compelling arbitration of Plaintiff, Steven Mendez’s claim and staying this action pending completion of arbitration. The Motion to Compel Arbitration is GRANTED as to certain issues, as discussed below, the other claims against Artisan are stayed pending completion of arbitration, and the claims against co-Defendants, McNeil Tropp & Braun LLP and Jeff I. Braun are severed from the stay. Specifically, Artisan moves to compel arbitration of the issues of whether, and in what amount, Plaintiff is entitled to recover UIM damages and requests a stay as to Plaintiff’s other claims against Artisan pending completion of arbitration.